

§ 519. Effect of death, absence or mental illness of putative father.

If, at any time before or after a petition is filed, the putative father dies, or becomes mentally ill or cannot be found within the state, neither the proceeding nor the right to commence the proceeding shall necessarily abate but may be commenced or continued by any of the persons authorized by this article to commence a paternity proceeding where:

(a) the putative father was the petitioner in the paternity proceeding; or,

(b) the putative father acknowledged paternity of the child in open court; or,

(c) a genetic marker or DNA test had been administered to the putative father prior to his death; or,

(d) the putative father has openly and notoriously acknowledged the child as his own.